

22VECV00477 22VECV00477

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-14

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22VECV00477 MCGINNIS V BASSON

Tentative rulings on Motions to Compel: To the extent that the responses and supplemental response refer to the propounding party as Basson instead of Compass, the court finds that the subject discovery were all propounded by Compass.

Defendant Compass' Motion to deem the request for admission of the genuiness of documents: Grant. The following documents – attached to the motion - are deemed to be genuine:

Document attached as Exhibit 1 entitled "Pool Inspection Report".

Document attached as Exhibit 2 relating to an inspection report dated March 23, 2021 at 9:00 am.

Document attached as Exhibit 3 relating to an inspection report dated March 23, 2021 at 1:33 pm.

Document attached as Exhibit 4 relating to an email dated March 22, 2021 at 2:54 pm.

Document attached as Exhibit 5 relating to an email dated March 22, 2021 at 4:34 pm.

Document attached as Exhibit 6 entitled "Buyer's Final Settlement Statement".

The court makes no order as to the admissibility of these documents at trial.

Monetary sanctions are assessed against attorney Randy Chang in the reasonable amount of \$1,300 (for initial motion, reply, and appearance) pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2033.280 for discovery abuse without substantial justification, payable to the Client Trust Account of Lewis Brisbois Bisgaard & Smith LLP 650 Town Center Drive, Suite 1400 Costa Mesa, California 92626 no later than 9/18/2026. These sanctions cannot be passed through by Mr. Chang to his client Andrew McGinnis.

Defendant Compass' Motion for requests for admissions set one be deemed admitted: Deny as to RFAs number 1, 2, 3, 4, 5, 6, 8. As to RFA number 7, the court orders an answer without objection within 10 days. [REQUEST FOR ADMISSION NO. 7:

Admit that, after the close of escrow on the SUBJECT PROPERTY, no remedial work of any kind relating to leaks or leak-related issues was performed on the pool on the SUBJECT PROPERTY.]

Monetary sanctions are assessed against attorney Randy Chang, individually, in the reasonable amount of \$1,300 (for initial motion, reply, and appearance) pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2033.280 for discovery abuse without substantial justification, payable to the Client Trust Account of Lewis Brisbois Bisgaard & Smith LLP 650 Town Center Drive, Suite 1400 Costa Mesa, California 92626 no later than 9/18/2026. These sanctions cannot be passed through by Mr. Chang to his client Andrew McGinnis.

Defendant Compass' Motion to compel answers to special int set 3, nos. 64, 65, and 66: Deny. The supplemental responses were code compliant.

Monetary sanctions are assessed against attorney Randy Chang, individually, in the reasonable amount of \$1,300 (for initial motion, reply, and appearance) pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2030.290 for discovery abuse without substantial justification, payable to the Client Trust Account of Lewis Brisbois Bisgaard & Smith LLP 650 Town Center Drive, Suite 1400 Costa Mesa, California 92626 no later than 9/18/2026. These sanctions cannot be passed through by Mr. Chang to his client Andrew McGinnis.

Defendant Compass' Motion to compel answers to special int set 1, nos. 1-54: Deny in part and Grant in part. Most of the supplemental responses were code compliant. However, plaintiff is ordered to provide verified supplemental responses to the following special interrogatories within 10 days: 4, 8, 11, 14, 53, and 54.

Monetary sanctions are assessed against attorney Randy Chang, individually, in the reasonable amount of \$1,300 (for initial motion, reply, and appearance) pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2030.290 for discovery abuse without substantial justification, payable to the Client Trust Account of Lewis Brisbois Bisgaard & Smith LLP 650 Town Center Drive, Suite 1400 Costa Mesa, California 92626 no later than 9/18/2026. These sanctions cannot be passed through by Mr. Chang to his client Andrew McGinnis.

Defendant Compass' Motion to compel answers to form int set 1,: Grant in part and Deny in part. Most of the supplemental responses were code compliant. However, plaintiff is ordered to provide verified supplemental responses to the following form interrogatories within 10 days: 6.4(c), 6.5(b), (c), (d), and (e), 6.6, 6.7(c), 7.1(b) and (c), 17.1 as to RFAs 3, 4, 5, 6, and 8.

Monetary sanctions are assessed against attorney Randy Chang, individually, in the reasonable amount of \$1,300 (initial motion, reply, and appearance) pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2030.290 for discovery abuse without substantial justification, payable to the Client Trust Account of Lewis Brisbois Bisgaard & Smith LLP 650 Town Center Drive, Suite 1400 Costa Mesa, California 92626 no later than 9/18/2026. These sanctions cannot be passed through by Mr. Chang to his client Andrew McGinnis.

Defendant Compass' Motion to compel response and production of documents set 1: Deny. The supplemental responses are in substantial compliance.

Monetary sanctions are assessed against attorney Randy Chang, individually, in the reasonable amount of \$1,300 (for initial motion, reply, and appearance) pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2031.300 for discovery abuse without substantial justification, payable to the Client Trust Account of Lewis Brisbois Bisgaard & Smith LLP 650 Town Center Drive, Suite 1400 Costa Mesa, California 92626 no later than 9/18/2026. These sanctions cannot be passed through by Mr. Chang to his client Andrew McGinnis.